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PART 1220—FEDERAL RECORDS; GENERAL

Authority: 44 U.S.C. Chapters 21, 29, 31, and 33.

Source: 74 FR 51014, Oct. 2, 2009, unless otherwise noted.

§ 1220.1 What is the scope of Subchapter B?

Subchapter B specifies policies for Federal agencies' records management programs relating to proper records creation and maintenance, adequate documentation, and records disposition.

§ 1220.2 What are the authorities for Subchapter B?

The regulations in this subchapter implement the provisions of 44 U.S.C. Chapters 21, 29, 31, and 33.

§ 1220.3 What standards are used as guidelines for Subchapter B?

These regulations are in conformance with ISO 15489-1:2001, Information and documentation—Records management. Other standards relating to specific sections of the regulations are cited where appropriate.

§ 1220.10 Who is responsible for records management?

- (a) The National Archives and Records Administration (NARA) is responsible for overseeing agencies' adequacy of documentation and records disposition programs and practices, and the General Services Administration (GSA) is responsible for overseeing economy and efficiency in records management. The Archivist of the United States and the Administrator of GSA issue regulations and provide guidance and assistance to Federal agencies on records management programs. NARA regulations are in this subchapter. GSA regulations are in 41 CFR parts 102-193.

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- (b) Federal agencies are responsible for establishing and maintaining a records management program that complies with NARA and GSA regulations and guidance. [Subpart B of this part](#) sets forth basic agency records management requirements.

⦿ **§ 1220.12 What are NARA's records management responsibilities?**

- (a) The Archivist of the United States issues regulations and provides guidance and assistance to Federal agencies on ensuring adequate and proper documentation of the organization, functions, policies, decisions, procedures, and essential transactions of the Federal Government and ensuring proper records disposition, including standards for improving the management of records.
- (b) NARA establishes standards for the retention of records having continuing value (permanent records), and assists Federal agencies in applying the standards to records in their custody.
- (c) Through a records scheduling and appraisal process, the Archivist of the United States determines which Federal records have temporary value and may be destroyed and which Federal records have permanent value and must be preserved and transferred to the National Archives of the United States. The Archivist's determination constitutes mandatory authority for the final disposition of all Federal records.
- (d) The Archivist of the United States issues General Records Schedules (GRS) authorizing disposition, after specified periods of time, of records common to several or all Federal agencies.

⦿ **§ 1220.14 Who must follow the regulations in Subchapter B?**

The regulations in Subchapter B apply to Federal agencies as defined in [§ 1220.18](#).

⦿ **§ 1220.16 What recorded information must be managed in accordance with the regulations in Subchapter B?**

The requirements in Subchapter B apply to documentary materials that meet the definition of Federal records. See also [Part 1222 of this subchapter](#).

⦿ **§ 1220.18 What definitions apply to the regulations in Subchapter B?**

As used in subchapter B—

Adequate and proper documentation means a record of the conduct of Government business that is complete and accurate to the extent required to document the organization, functions, policies, decisions, procedures, and essential transactions of the agency and that is designed to furnish the information necessary to protect the legal and financial rights of the Government and of persons directly affected by the agency's activities.

Agency (see *Executive agency and Federal agency*).

Appraisal is the process by which the NARA determines the value and the final disposition of Federal records, designating them either temporary or permanent.

Commercial records storage facility is a private sector commercial facility that offers records storage, retrieval, and disposition services.

Comprehensive schedule is an agency manual or directive containing descriptions of and disposition instructions for documentary materials in all physical forms, record and nonrecord, created by a Federal agency or major component of an Executive department. Unless taken from General Records Schedules (GRS) issued by NARA, the disposition instructions for records must be approved by NARA on

or more Standard Form(s) 115, Request for Records Disposition Authority, prior to issuance by the agency. The disposition instructions for nonrecord materials are established by the agency and do not require NARA approval. See also *records schedule*.

Contingent records are records whose final disposition is dependent on an action or event, such as sale of property or destruction of a facility, which will take place at some unspecified time in the future.

Disposition means those actions taken regarding records no longer needed for the conduct of the regular current business of the agency.

Disposition authority means the legal authorization for the retention and disposal of records. For Federal records it is found on SF 115s, Request for Records Disposition Authority, which have been approved by the Archivist of the United States. For nonrecord materials, the disposition is established by the creating or custodial agency. See also *records schedule*.

Documentary materials is a collective term that refers to recorded information, regardless of the medium or the method or circumstances of recording.

Electronic messages means electronic mail and other electronic messaging systems that are used for purposes of communicating between individuals. Electronic messages that satisfy the definition of a Federal record under the Federal Records Act are electronic records.

Electronic record means any information that is recorded in a form that only a computer can process and that satisfies the definition of a Federal record under the Federal Records Act. The term includes both record content and associated metadata that the agency determines is required to meet agency business needs.

Evaluation means the selective or comprehensive inspection, audit, or review of one or more Federal agency records management programs for effectiveness and for compliance with applicable laws and regulations. It includes recommendations for correcting or improving records management policies and procedures, and follow-up activities, including reporting on and implementing the recommendations.

Executive agency means any executive department or independent establishment in the Executive branch of the U.S. Government, including any wholly owned Government corporation.

Federal agency means any executive agency or any establishment in the Legislative or Judicial branches of the Government (except the Supreme Court, Senate, the House of Representatives, and the Architect of the Capitol and any activities under his direction). (44 U.S.C. 2901(14)).

Federal records (see *records*).

File means an arrangement of records. The term denotes papers, photographs, maps, electronic information, or other recorded information regardless of physical form or characteristics, accumulated or maintained in filing equipment, boxes, on electronic media, or on shelves, and occupying office or storage space.

Information system means the organized collection, processing, transmission, and dissemination of information in accordance with defined procedures, whether automated or manual.

Metadata consists of preserved contextual information describing the history, tracking, and/or management of an electronic document.

National Archives of the United States is the collection of all records selected by the Archivist of the United States because they have sufficient historical or other value to warrant their continued preservation by the Federal Government and that have been transferred to the legal custody of the Archivist of the United States currently through execution of a Standard Form (SF) 258 (Agreement

to Transfer Records to the National Archives of the United States). See also *permanent record*.

Nonrecord materials are those Federally owned informational materials that do not meet the statutory definition of records ([44 U.S.C. 3301](#)) or that have been excluded from coverage by the definition. Excluded materials are extra copies of documents kept only for reference, stocks of publications and processed documents, and library or museum materials intended solely for reference or exhibit.

Permanent record means any Federal record that has been determined by NARA to have sufficient value to warrant its preservation in the National Archives of the United States, even while it remains in agency custody. Permanent records are those for which the disposition is permanent on SF 115, Request for Records Disposition Authority, approved by NARA on or after May 14, 1973. The term also includes all records accessioned by NARA into the National Archives of the United States.

Personal files (also called *personal papers*) are documentary materials belonging to an individual that are not used to conduct agency business. Personal files are excluded from the definition of Federal records and are not owned by the Government.

Recordkeeping requirements means all statements in statutes, regulations, and agency directives or other authoritative issuances, that provide general or specific requirements for Federal agency personnel on particular records to be created and maintained by the agency.

Recordkeeping system is a manual or electronic system that captures, organizes, and categorizes records to facilitate their preservation, retrieval, use, and disposition.

Records or Federal records is defined in [44 U.S.C. 3301](#) as including “all books, papers, maps, photographs, machine readable materials, or other documentary materials, regardless of physical form or characteristics, made or received by an agency of the United States Government under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations or other activities of the Government or because of the informational value of the data in them ([44 U.S.C. 3301](#)).” (See also [§ 1222.10 of this part](#) for an explanation of this definition).

Records center is defined in [44 U.S.C. 2901\(6\)](#) as an establishment maintained and operated by the Archivist (NARA Federal Records Center) or by another Federal agency primarily for the storage, servicing, security, and processing of records which need to be preserved for varying periods of time and need not be retained in office equipment or space. See also *records storage facility*.

Records management, as used in subchapter B, means the planning, controlling, directing, organizing, training, promoting, and other managerial activities involved with respect to records creation, records maintenance and use, and records disposition in order to achieve adequate and proper documentation of the policies and transactions of the Federal Government and effective and economical management of agency operations.

Records schedule or schedule means any of the following:

- (1) A Standard Form 115, Request for Records Disposition Authority that has been approved by NARA to authorize the disposition of Federal records;
- (2) A General Records Schedule (GRS) issued by NARA; or
- (3) A published agency manual or directive containing the records descriptions and disposition instructions approved by NARA or

one or more SF 115s or issued by NARA in the GRS. See also *comprehensive schedule*.

Records storage facility is a records center or a commercial records storage facility, as defined in this section, i.e., a facility used by a Federal agency to store Federal records, whether that facility is operated and maintained by the agency, by NARA, by another Federal agency, or by a private commercial entity.

Retention period is the length of time that records must be kept.

Series means file units or documents arranged according to a filing or classification system or kept together because they relate to a particular subject or function, result from the same activity, document a specific kind of transaction, take a particular physical form, or have some other relationship arising out of their creation, receipt, or use, such as restrictions on access and use. Also called a *records series*.

Temporary record means any Federal record that has been determined by the Archivist of the United States to have insufficient value (on the basis of current standards) to warrant its preservation by the National Archives and Records Administration. This determination may take the form of:

- (1) Records designated as disposable in an agency records disposition schedule approved by NARA (SF 115, Request for Records Disposition Authority); or
- (2) Records designated as disposable in a General Records Schedule.

Unscheduled records are Federal records whose final disposition has not been approved by NARA on a SF 115, Request for Records Disposition Authority. Such records must be treated as permanent until a final disposition is approved.

[74 FR 51014, Oct. 2, 2009, as amended at 87 FR 75931, Dec. 12, 2022]

◉ § 1220.20 What NARA acronyms are used throughout this subchapter?

As used in this subchapter—

- AC** means Office of the Chief Records Officer, which includes NARA records management staff nationwide.
- ACRA** means the Records Appraisal and Agency Assistance Division.
- AFO** means the Office of Operations (regional records services).
- B-AD** means the Storage Coordination and Logistics Office.
- NARA** means the National Archives and Records Administration.
- RDE** means the Electronic Records Division.
- RDS** means the Special Media Records Division.
- RX** means Preservation Programs.
- WNRC** means the Washington National Records Center.

[83 FR 13653, Mar. 30, 2018]

◉ Subpart B—Agency Records Management Responsibilities

◉ § 1220.30 What are an agency's records management responsibilities?

- (a) Under 44 U.S.C. 3101, the head of each Federal agency must make and preserve records containing adequate and proper documentation of the organization, functions, policies, decisions, procedures, and essential transactions of the agency. These records must be designed to furnish the information necessary to protect the legal and financial

rights of the Government and of persons directly affected by the agency's activities.

- (b) Under [44 U.S.C. 3102](#), the head of each Federal agency must establish and maintain an active, continuing program for the economical and efficient management of the records of the agency.
- (c) Agency records management programs must provide for:
 - (1) Effective controls over the creation, maintenance, and use of records in the conduct of current business; and
 - (2) Cooperation with the Archivist and the Administrator of GSA in applying standards, procedures, and techniques designed to improve the management of records, promote the maintenance and security of records deemed appropriate for preservation, and facilitate the segregation and destruction of records of temporary value.

⦿ **§ 1220.32 What records management principles must agencies implement?**

Agencies must create and maintain authentic, reliable, and usable records and ensure that they remain so for the length of their authorized retention period. A comprehensive records management program provides policies and procedures for ensuring that:

- (a) Records documenting agency business are created or captured;
- (b) Records are organized and maintained to facilitate their use and ensure integrity throughout their authorized retention periods;
- (c) Records are available when needed, where needed, and in a usable format to conduct agency business;
- (d) Legal and regulatory requirements, relevant standards, and agency policies are followed;
- (e) Records, regardless of format, are protected in a safe and secure environment and removal or destruction is carried out only as authorized in records schedules; and
- (f) Continuity of operations is supported by a vital records program (see [part 1223 of this subchapter](#)).

⦿ **§ 1220.34 What must an agency do to carry out its records management responsibilities?**

To carry out the responsibilities specified in [44 U.S.C. 3101](#) and [3102](#), agencies must:

- (a) Assign records management responsibility to a person and office with appropriate authority within the agency to coordinate and oversee implementation of the agency comprehensive records management program principles in [§ 1220.32](#);
- (b) Advise NARA and agency managers of the name(s) of the individual(s) assigned operational responsibility for the agency records management program. To notify NARA, send the name(s), e-mail and postal addresses, phone and fax numbers of the individual(s) to NARA (AC), 8601 Adelphi Road, College Park, MD 20740-6001 or to RM.Communications@nara.gov. The name, title, and phone number of the official or officials authorized by the head of the agency to sign records disposition schedules and requests for transfer of records to the custody of the National Archives must also be submitted to NARA (AC) or RM.Communications@nara.gov;
- (c) Issue a directive(s) establishing program objectives, responsibilities, and authorities for the creation, maintenance, and disposition of agency records. Copies of the directive(s) (including subsequent

amendments or supplements) must be disseminated throughout the agency, as appropriate, and a copy must be sent to NARA (AC);

- (d) Assign records management responsibilities in each program (mission) and administrative area to ensure incorporation of recordkeeping requirements and records maintenance, storage, and disposition practices into agency programs, processes, systems, and procedures;
- (e) Integrate records management and archival requirements into the design, development, and implementation of electronic information systems as specified in [§ 1236.12 of this subchapter](#);
- (f) Provide guidance and training to all agency personnel on their records management responsibilities, including identification of Federal records, in all formats and media;
- (g) Develop records schedules for all records created and received by the agency and obtain NARA approval of the schedules prior to implementation, in accordance with [36 CFR parts 1225 and 1226](#) of this subchapter;
- (h) Comply with applicable policies, procedures, and standards relating to records management and recordkeeping requirements issued by the Office of Management and Budget, NARA, GSA, or other agencies, as appropriate (see [§ 1222.22 of this subchapter](#));
- (i) Institute controls ensuring that all records, regardless of format or medium, are properly organized, classified or indexed, and described, and made available for use by all appropriate agency staff; and
- (j) Conduct formal evaluations to measure the effectiveness of records management programs and practices, and to ensure that they comply with NARA regulations in this subchapter.

[74 FR 51014, Oct. 2, 2009, as amended at 83 FR 13653, Mar. 30, 2018]

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